



Appeal Decision

Site visit made on 25 August 2026

by Andrew Owen MA BA(Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 8th September 2026

Appeal Ref: 6008989

Land to the south west of Stonards Hill, Epping CM16 4PX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Wates Group Ltd against the decision of Epping Forest District Council.
 - The application Ref is EPF/1215/25.
 - The development proposed is change of use to the keeping of horses for recreational purposes.
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Decision

1. The appeal is allowed and planning permission is granted for a change of use to the keeping of horses for recreational purposes at land south west of Stonards Hill, Epping, CM16 4PX in accordance with the terms of the application, Ref EPF/1215/25, subject to the conditions in the attached schedule.

Preliminary Matters

2. During the consideration of this appeal, the government published a revised version of the National Planning Policy Framework (the 'Framework'). I have taken account of that in my decision.
3. The site is within the Green Belt. Policy GB7 of the Framework sets out that material changes of use of land, or appropriate facilities for outdoor recreation, are not inappropriate, providing the impact on the openness of the Green Belt is minimised and there would not be a significant conflict with the Green Belt purposes. This is similar to the corresponding parts of the previous version of the Framework and policy DM4 of the Epping Forest Local Plan (2023) (the 'Local Plan'). The main parties consider the development would not be inappropriate. As the proposal is for the keeping of horses only and does not include any built development such as fencing, buildings or equine related equipment, I have no reason to disagree.

Main Issue

4. The main issue is the effect on the proposal on biodiversity.

Reasons

5. The appeal site currently comprises nearly 14 hectares of undeveloped undulating land on the edge of Epping. It accommodates areas of woodland, grassland and scrub. It is understood that there are also some ponds and streams, but at the time of my site visit, at the end of a very hot and dry summer, some ponds and the stream were dry. However, some of the ponds, in particular the large one in the

west of the site which I understand is used for fishing, were inaccessible to me due to the density of the surrounding woodland, so may have contained water.

6. In fact, the scrub and much of the woodland was so thick as to be inaccessible, but there were clear pathways across the grassland. This indicates it is a well-used recreational area for the public, even though it is in private ownership, and the correspondence from interested parties supports this. It is understood that there are pending applications to have public rights of way across the site formalised.
7. The appellant's covering letter sets out that the proposal is for up to eight horses.
8. In terms of the quality of the site currently, the appellant's Preliminary Ecological Appraisal Report and Outline Ecological Assessment (PEAR) found the grassland to be neutral in quality; the extensive areas of woodland to contain some protected and veteran trees of ecological importance; and the stream banks to provide wet habitats supporting a number of plant and tree species.
9. The introduction of horses would result in some trampling and grazing of the grassland and nutrient enrichment from manure. But given the limited number of horses, who would have free reign over the whole site, it would be unlikely in my view that these effects would be excessive in any one part of the site such that the quality of the grassland, which is not species rich, would be unacceptably harmed. With regard to the woodland, I see no reason why horses would cause harm to that habitat. In addition, from my site visit, I saw that all the locations where water may sometimes be present were surrounded either by dense woodland or thick scrub. It is unlikely, in my view, that these waterbodies would be readily accessible by horses. Nonetheless, the PEAR recommended that the opportunity be taken to protect and restore the wetland habitat on-site. A River Condition Survey could inform this, and a fenced 10 metre buffer either side of the stream could be provided to prevent access to the stream margins by horses and hence support habitat restoration there.
10. The Council suggest that fencing would be inevitable, either for ecological or site management reasons, and that it would be harmful to flora and fauna. However, details of any necessary fencing could be secured by condition to ensure its position and design allowed for the retention of habitat and the free flow of existing fauna throughout site.
11. With regard to fauna, the PEAR found grass snakes on the site. It recommended a further reptile survey to ascertain the size of the population and to establish if any other reptile species were present. It also found evidence of badgers, and that the site is medium to high quality for bats and amphibians, though found no record of great crested newts being at the site. It concluded that the proposal would not be likely to have any adverse effect on amphibians, bats, badgers or any other mammals or their habitat.
12. A further reptile survey was undertaken although only two visits were able to be completed due to the surveying equipment being interfered with. Nonetheless, the surveys that were done showed that slow worms and common lizards were present. As such, suggested mitigation included log piles/hibernacula and buffer areas around field boundary features. The Council's ecological consultant, in a response during the determination of the application, considered that on that basis a detailed mitigation strategy could be secured by a planning condition. I agree.

13. Overall, the introduction of horses would be a new element in the ecosystem of the site and would introduce new activities such as grazing, trampling and nutrient enhancement. However I have no substantive evidence before me to suggest such activities by just eight horses over the whole site would be harmful to its biodiversity, particularly with mitigation in place. Indeed, all these species, including horses, are commonly found side by side in rural areas.
14. This site is within the zone of influence for Epping Forest Special Area of Conservation (SAC). Its qualifying features include north Atlantic wet heaths, European dry heaths, Atlantic acidophilous beech forest and the stag beetle. The conservation objectives for the SAC are generally to maintain and restore the distribution, structure, function and supporting processes of the habitats and the population and distribution of the qualifying species. Atmospheric pollution from additional traffic on roads within the SAC, or on roads within 200 metres of the SAC, could result in a significant effect on the integrity of the SAC. However as the development would result in a negligible amount of additional traffic, the Council consider there would be no material harm to air quality and a financial contribution, as suggested by Natural England which would be normally sought for new homes, would not be appropriate. I agree that any traffic generated by the development would most likely be less than that generated by a single dwelling and therefore the mitigation suggested by Natural England would be excessive. As such I conclude the development would not be likely to have significant effects on the integrity of the SAC.
15. In summary the development would not be likely to unacceptably harm biodiversity. It would therefore accord with policy DM1 of the Local Plan which states that development must seek to avoid harm to, protect and enhance natural habitats and species.

Other Matters

16. The Council refer to an inherent conflict between public access and the proposed use, and this is a common concern by local residents. However there is no reason why formal public access, if granted, could not be sustained as any obstruction of a public right of way would be contrary to the Highways Act 1980. Indeed, if public access were to be formalised, it would not even necessarily require the grazing areas to be fenced off, though would require dogs to be kept on a lead.
17. Many other concerns are focussed around the anticipation that this proposal is a precursor to future plans for housing. However I can only determine the appeal on the basis of what is proposed within it. Similarly, though there are concerns relating to the welfare of the horses and what additional infrastructure may be needed to support that, I can only consider the proposal before me and I have no reason to consider the horses could not be appropriately cared for by visiting owners with mobile equipment.
18. It is understood that there is currently an application for the site to become an Asset of Community Value. Even if this were granted, there is no reason why that would be incompatible with the use of the site for the keeping of horses. The Council's position on this supports my view.

Conditions

19. I have considered the conditions suggested by the Council against the advice in the Planning Practice Guidance and the Framework. Where necessary I have slightly altered the wording of the conditions to better reflect that advice.
20. I have imposed the standard condition relating to the commencement of the development and identifying the approved plan in the interests of certainty. For the same reason I have included a condition limiting the number of horses that may be kept on the site.
21. I have also imposed conditions relating to the submission of a reptile method statement, to ensure reptiles are protected; relating to landscape management, to ensure all existing habitats are suitably protected; and relating to planting, to ensure any landscape features that are lost are appropriately replaced. The landscape management condition would address the recommendations of the PEAR to protect and manage the river margins habitat. Similarly, a condition preventing the installation of external lighting is necessary to ensure that some species, such as bats, are not adversely affected. Likewise, to ensure all protected species and their habitats are not harmed, a condition requiring the provision of details of any fencing is included.
22. A condition relating to the removal of any materials, structures and equipment upon the cessation of the use is necessary to ensure that the character and appearance of the site is maintained in the long term.
23. A condition was suggested relating to unexpected contamination of the site. However as no built development is proposed, and so no excavation likely, there is no reason to consider that any ground contamination would be disturbed. Furthermore, the officers report confirms that no specific former potentially contaminating uses have been identified for this site. This condition is therefore unnecessary.

Conclusion

24. The proposal would accord with the development plan taken as a whole and there are no other considerations that indicate a decision other than in accordance with the development plan. Therefore the appeal is allowed.

Andrew Owen

INSPECTOR

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plan: EP_PSP_01.
- 3) Within three months of the date of this decision, a Reptile Method Statement shall be submitted to and approved in writing by the local planning authority. The Statement shall include the following details:
 - i) purpose and objectives for the proposed works;
 - ii) detailed design(s) and/or working method(s) necessary to achieve stated objectives;
 - iii) extent and location of proposed works shown on appropriately scaled maps and plans;
 - iv) persons responsible for implementing the works;
 - v) initial aftercare and long-term maintenance.

The works shall be carried out strictly in accordance with the approved Statement and shall be retained in that manner thereafter.

- 4) Prior to the commencement of the development hereby approved, a plan indicating the position, height, design, materials and type of any fencing or boundary treatment to be erected, shall be submitted to and approved in writing by the local planning authority. Any such development shall be completed as approved before the use is commenced and retained as such thereafter.
- 5) Prior to the commencement of the development hereby approved, a Landscape Management Plan, including long and short term design objectives, management responsibilities and maintenance schedules for all landscape areas, shall be submitted to and approved in writing by the local planning authority. The Plan shall be carried out as approved.
- 6) No more than eight horses shall be on the site at any time.
- 7) No external lighting shall be installed on the site.
- 8) Upon cessation of the use hereby permitted any materials, structures and equipment brought onto the site in connection with the use shall be removed and the land shall be restored to its condition before the development took place.
- 9) If any tree, shrub or hedge is removed, uprooted, destroyed, dies, or becomes severely damaged or diseased as a result of the development, another tree, shrub or hedge of the same size and species shall be planted within 3 months at the same place. If, within a period of five years from the date of planting, any replacement tree, shrub or hedge is removed, uprooted or destroyed, or dies or becomes seriously damaged or defective, another tree, shrub or hedge of the same species and size as that originally planted shall, within 3 months, be planted at the same place.